



Image sources: <http://www.usk.de>, https://en.wikipedia.org/wiki/Pan_European_Game_Information, <https://gamebanana.com/sprays/39859>



- Games are an integral part of our everyday culture
- Playing games takes place alone or together with other players
- Girls, boys, juveniles and adults all participate
- The German Cultural Council (Deutscher Kulturrat e.V.) recognizes computer games as **cultural heritage** eligible for public promotion
- Computer games bring inherent risks in their wake
 - Graphic depictions of violence
 - Temporally excessive media consumption
- Just like with any other medium, computer games bear risks and dangers regarding their possible effects
- Responsibility for the protection of children and young persons
 - Parents (primarily)
 - Society as a whole
 - State
- Age rating systems classify video games into suitability-related groups

Total confusion



Image sources: <https://www.rebuy.de/i,78778/nintendo-wii/meine-tierpension>

Framework conditions



- Germany has the strictest statutory rules in the world for the classification and sale of games.
 - Basic Law
(Grundgesetz (GG))
 - Children and Young Persons Protection Act
(Jugendschutzgesetz (JuSchG))
 - Youth Media Protection State Agreement
(Jugendmedienschutz-Staatsvertrag (JMStV))
 - Federal Agency for Protection of Media for Minors*
(Bundeszentrale für Kinder- und Jugendmedienschutz (BzKJ))
 - Criminal Code
(Strafgesetzbuch (StGB))
 - Supreme Youth Protection Authorities of the Federal States
(Oberste Landesjugendbehörden (OLJB))
 - Entertainment Software Self-Regulation Body
(Unterhaltungssoftware Selbstkontrolle (USK))
 - International Age Rating Coalition (IARC)

*freely translated

Basic Law (Grundgesetz)



- Article 5 [Freedom of expression]
- Article 5 Paragraph 1
 - [...] There shall be no censorship.
- Article 5 Paragraph 2
 - These rights shall find their limits [...] in provisions for the protection of young persons [...]
 - i.e. by the provisions made in the German Children and Young Persons Protection Act (JuSchG).



Image sources: https://de.wikipedia.org/wiki/Liste_der_Artikel_des_Grundgesetzes

Children and Young Persons Protection Act (JuSchG)*

- Article 12 Paragraph 1
 - [...] or games, shall not be accessible in the public for Children [...] unless they have been cleared and labeled for the respective age group [...]
- Article 14 Paragraph 2
 - The following release codes may be issued for [...] play programs by [...] an organization of voluntary self-control in a procedure on the basis of Sub-Clause 6: [...]
- Article 14 Paragraph 6
 - [...] common procedure for release and labeling of [...] play programs based on findings recorded from reviews [...]
- Article 28 Paragraph 3
 - A regulatory offense is committed by a person [...] who encourages a Child [...] to assume behaviors that ought to be prevented [...]



*The JuSchG was reformed in May 2021 and now also covers various content descriptors.

Image sources: <https://www.amazon.de/Jugendschutzgesetz-B%C3%BCcher/s?ie=UTF8&page=1&rh=n%3A186606%2Ck%3AJugendschutzgesetz>

Youth Media Protection State Agreement (JMStV)



- Since September 2011, the USK is also approved for regulating online media in accordance with the JMStV apart from data media in accordance with the JuSchG.
- As a result of this comprehensive competence transferred by the state, the USK can now function as a uniform contact for all questions concerning youth protection.
- Since 2014, games and apps published on licensed storefronts are being classified using the International Age Rating Coalition (IARC) system.
 - In accordance with the JMStV, the USK monitors classifications made by the IARC on a regular basis to guarantee their quality.
- Since 2022 a reformation of the JMStV is being discussed
 - However, the USK voiced concerns about the potential weakening of existing protection mechanisms



Image sources: <http://mrtopf.de/politik-politics/jmstv-studien/>

Federal Agency for Protection of Media for Minors (BzKJ) (1/4)



- Upper-level German federal agency subordinate to the Federal Ministry of Family Affairs, Senior Citizens, Women and Youth
 - (BPjS until 2003; BPjM until 2021)
- Responsible for examining media works allegedly harmful to young people and entering these onto an official list - a process known as indexing
 - List of media endangering young persons
 - Computer games may only be “indexed” if they do not have a German age rating symbol.
- Criteria for indexing
 - Content which is proscribed by the criminal law such as incitement to hate or violence against a group of people, instructions on how to commit crime, glorification or trivialization of violence, incitement to racial hatred and pornography.
 - Content which glorifies war.
 - Content which depicts minors in an unnatural/harmful situation.



Image sources: <https://www.bzkg.de/>



- Indexing can take 3 forms:

1. Index List A

- May not be supplied to children and young persons
- May not be publicly advertised, displayed or broadcast
- May not be distributed via mail order
- Must remain legally available to adults
 - special shop to which only adults have access
 - via the Internet in a restricted user group for adults only



2. Index List B (further restrictions in addition to list A)

- Relevant under criminal law
- Potential for confiscation

3. Seized by court order (aka confiscated)

- May not be sold, even to adults



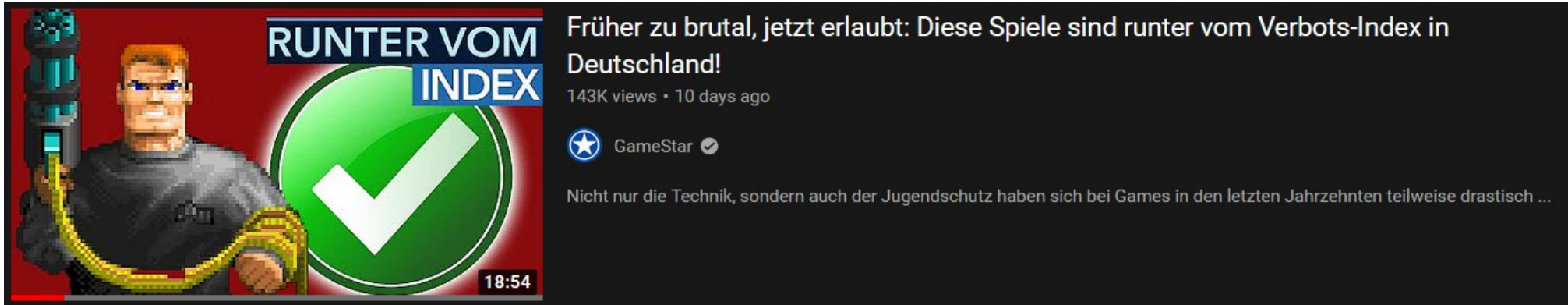
- Critics accuse the BzKJ of de facto censorship, paternalism, and restricting the freedom of speech and of the press on the following grounds:
 - In practice it also becomes more difficult for adults to get access to it, as indexed works must not be advertised and may be sold by mail order only under strict conditions. The sale of such works is therefore often not profitable, and the work thus disappears from the market.
 - Journalists may carry out self-censorship and choose not to mention the work to avoid possible legal trouble.
 - Germany is the only western democracy with an organization like the BzKJ. The rationales for earlier decisions to add works to the index are, in retrospect, incomprehensible reactions to moral panics. An example of this is the controversy about the computer game River Raid.



Image sources: https://en.wikipedia.org/wiki/River_Raid



- Recent development: Several games got removed from the index



<https://www.youtube.com/watch?v=vJlwmjJkP8s>

Criminal Code (StGB)



- Computer games may be prohibited in Germany if they include content which is forbidden by the StGB, such as excessive violence, racism, warmongering, use of anti-constitutional symbols.
- Prohibited computer games may be seized by court order. Such games do not have an age rating and may not be sold in Germany, even to adults.

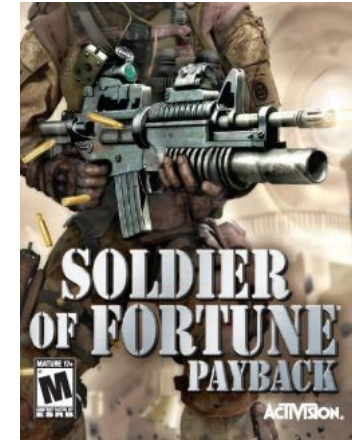


Image sources: <http://www.beck-shop.de/strafgesetzbuch-stgb/productview.aspx?product=19497777>, https://en.wikipedia.org/wiki/Dead_Rising_2, <http://www.mobygames.com/game/silent-hill-homecoming/cover-art/gameCoverId,333595/>, <http://www.mobygames.com/game/xbox360/condemned-2-bloodshot/cover-art/gameCoverId,114629/>, https://en.wikipedia.org/wiki/Soldier_of_Fortune:_Payback

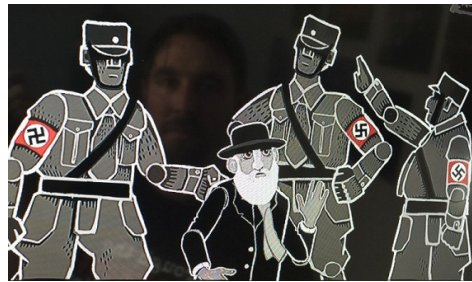


- JuSchG transfers to the Federal States the task of classifying games intended to be supplied to young persons aged under 18 for a certain age group before such games are released
- The age rating of computer games is a task for the Ministries of the Federal States with jurisdiction over young persons' affairs.
- The Federal States have agreed that the relevant Ministry of the State of North Rhine-Westphalia will act as the lead ministry for all Federal State Ministries in assuming responsibility for age rating.
- The State NRW makes staff available for this purpose. These members of staff are directly involved in every classification procedure in their capacity as Representatives of the OLJB.
- Age classifications are always issued by one of these Representatives of the OLJB. In legal terms, these decisions represent a sovereign act of administration against which legal redress may be sought.

Swastikas in games!?



- In August 2018, the OLJB has updated their legal interpretation in regards to anti-constitutional symbols in games.
 - The “Sozialadäquanzklausel” allows the use of anti-constitutional symbols in media under certain circumstances.
 - A fundamental decision of the higher regional court Frankfurt from the 1998 stated that games cannot use anti-constitutional symbols at all.
 - Therefore, such games could only be indexed or prohibited!
 - Now, it is possible that such titles are analysed and rated by the USK.
 - A clear historical, scientific or artistic context is required.
 - Through the Darkest of Times is the first such game rated by the USK.



www.youtube.com/watch?v=rS88Kux8c94

Image sources: <http://throughthedarkestoftimes.com/>, <https://www.timesofisrael.com/video-game-swastikas-stir-unease-in-germany/>

Entertainment Software Self-Regulation Body (USK)



- The USK is set up by the associations of the computer games industry
- Non-profit making, limited company
- Shareholders bear the economic risk but are not responsible for age rating
 - game (Verband der deutschen Games-Branche)
- Advised by an Advisory Council
 - Stipulates the principles and classification regulations
 - Approves games testers and child protection experts appointed to their posts
 - Members include representatives of the churches, media education, the federal and state youth ministries, the (BzKJ), youth organizations, the Kommission für Jugendmedienschutz (KJM), the digital games industry and youth protection experts
- Ensures that games can be tested
 - Technically (several platforms) and in terms of their content
- Organizes the Classification Committees and ensures deadlines are met
 - Classification Committee consists of child protection experts
 - Recommends an age rating to the OLJB representatives
 - OLJBs accept or appeal against the recommendation



Image sources: <http://www.usk.de/>

International Age Rating Coalition (IARC)



- Procedure
 - An IARC questionnaire is being filled out by the developer
 - The results are 'localised' age classifications (USK, PEGI, ESRB, etc.)
 - Customers can complain about inappropriate classification
 - In Germany, the USK is monitoring the classifications using procedure-specific means
 - Rating might change based on a proper review
 - Since 2021 ATLAS (Artificial Intelligence Testing, Learning And Scraping) for better quality management
- Additional content information
 - Descriptors regarding youth protection relevant contents:
 - Violence, Fear, Sexual Content, Language, Drugs, Discrimination
 - Descriptors regarding interactive elements:
 - Users Interact, Shares Info, Shares Location, Digital Purchases, Unrestricted Internet Access
- Participating storefronts
 - Google Play, Microsoft Store, Nintendo eShop, Oculus Store, PlayStation Store, Stadia
 - Many important ones are still missing!



Image sources: <https://www.game.de/en/iarc-international-age-rating-coalition/>

Framework conditions: Summary



- Basic Law says child protection is no censorship
- Age ratings are defined by the JuSchG
 - JMStV covers online media (also empowers the USK)
 - JMStV also allows the USK to monitor IARC ratings
- Games may be indexed by the BzKJ
 - Restricted marketing and advertising
- Games may be prohibited (and confiscated) according to the StGB
 - Selling them is illegal, owning them is not
- Games may be assigned an age rating
 - Can then no longer be indexed
 - Selling them to minors is a regulatory offence (penalty up to 50.000€)
 - Parents are responsible for their own children
- The USK plays the games and presents them to a committee
 - The committee may suggest an age rating according to the JuSchG
 - The OLJB representative accepts or refuses

Relevance for development



- Developers usually target a certain age rating
 - Different rating systems
 - Cultural differences
 - Target group / demographics
- The games are being altered (cut) deliberately
 - Blood, depiction of violence, sexual content, course words, etc.
 - Different versions for different markets
- The publisher submits the games to the respective authorities
 - Pays fees
 - Possibly multiple submissions (or may choose to not submit at all)
 - Has to print the appropriate labels on the boxes and media
- The game must be almost 100% complete before submission
 - All content must be testable
 - Last minute changes are very risky

Relevance for sales and marketing



- Labeled games (according to JuSchG)
 - May be sold to individuals of appropriate age
 - Can be advertised and presented in public
- Indexed games
 - May be sold only to adults
 - Can not be advertised or presented in public
- Prohibited (or confiscated) games
 - May not be sold to anyone
 - Owning them is not illegal
- Unlabeled games are practically unsellable!
 - No possibility to raise awareness
 - Not financially profitable
 - Controversy about whether this is censorship or not

Relevance for private use



- Parents decide what their children are allowed to play
 - Age ratings help with the decision
 - Assessment of emotional and social maturity
 - Providing care and supervision
- A lot of people buy imported games
 - E.g. uncut versions from the UK
 - These are being treated equally to unlabeled (or indexed) games
- Modders create “blood patches”
 - E.g. the Hot Coffee mod
 - E.g. Command & Conquer Unofficial Patch
- Unavailable games are often being pirated
 - E.g. Giana Sisters
 - Was taken off the shelves due to legal issues with Nintendo
 - Became widely available through piracy and black market copies



Image sources: <https://www.schnittberichte.com/schnittbericht.php?ID=3324>

Examples of cut games (1/2)



- Command & Conquer
 - Humans → Cyborgs
 - Blood was removed
 - Different sound effects
- Half Life
 - Soldiers → Robots
 - Blood → Oil
 - Altered sound effects (“robot grunt”)
 - Death animations
- Bioshock
 - Reduced gore effects
 - Enemies can't be set on fire
 - Corpses disappear
 - Less screaming and crying
- GTA San Andreas
 - Hot Coffee mod
 - Disk locked mini-game (never to be unlocked...)
 - Led to re-rating as an adult game
 - Updated version with the minigame removed

Examples of cut games (2/2)



<http://www.youtube.com/watch?v=lquTH9qJnCE>



<http://www.youtube.com/watch?v=AV7rZRu4guo>



USK Unterhaltungssoftware
Selbstkontrolle

Age Classifications for Computer and Video Games in Germany.



Image sources: www.usk.de

USK - Responsibilities



- Responsible for age-ratings in German
 - The only legally enforced standard in Germany
- Checks the games technically and in terms of content and ensures that games are presented to the Classification Committee.
- Provides the whole of the infrastructure and organization required for the procedure.
- Organises of the Classification Committees, classification deadlines and the necessary continuing training for all those involved in the classification procedure.
- The USK does not participate in classification decisions made by the Classification Committee.



- Play the games through (100%)
 - This is unique worldwide
 - Playtime can be extremely long! (e.g. GTA 5, Witcher 3, Zelda BotW...)
 - Are in possession of additional information supplied by the publisher
 - Hidden or unlockable content
 - Cheat codes
 - Their full evaluation of the game requires them to consider all details relevant to child protection issues.
- Write a neutral written test report
- Prepare a presentation
 - Save game statuses to be able to show relevant parts
- Present the game to the Classification Committee
 - Neither the USK nor the testers issue an age suggestion!



- Four child protection experts
- One permanent representative of the OLJB
- Over 50 child protection experts are approved by the Advisory Council
 - Independent of both the USK and the computer games industry
 - Have experience working with media and young persons aged under 18
 - Youth social services, academic research, church institutions, BzKJ, voluntary associations providing support to young persons or other professional fields
- Advantage: Changing and pluralistic Classification Committees
 - Majority vote
 - Games can be evaluated from a number of different perspectives
 - The youngest of the respective age group are the relevant focus
 - Experts recommend an age classification to the Permanent Representatives of the OLJB

USK - Permanent Representatives



- Two permanent representatives of the OLJB at the USK
 - Appointed by the federal state of North Rhine-Westphalia
- One takes part in the evaluation procedure for each classification
- May either adopt the recommendation made by the Classification Committee or else appeal against it
 - If age rating is issued it must be displayed on the packaging and data media
 - Otherwise the game might be submitted to the BzKJ
- USK recent developments
 - 2020: Gambling mechanics (loot boxes) are now recognized as relevant
 - 2021: JuSchG is reformed
 - It now, for example, includes content descriptors, etc.
 - USK and OLJB are currently working on implementing it
 - 2022: Reformation of the JMStV is discussed
 - USK fears a weakening of current protection mechanisms (especially in regards to IARC)

USK – Classification Procedure

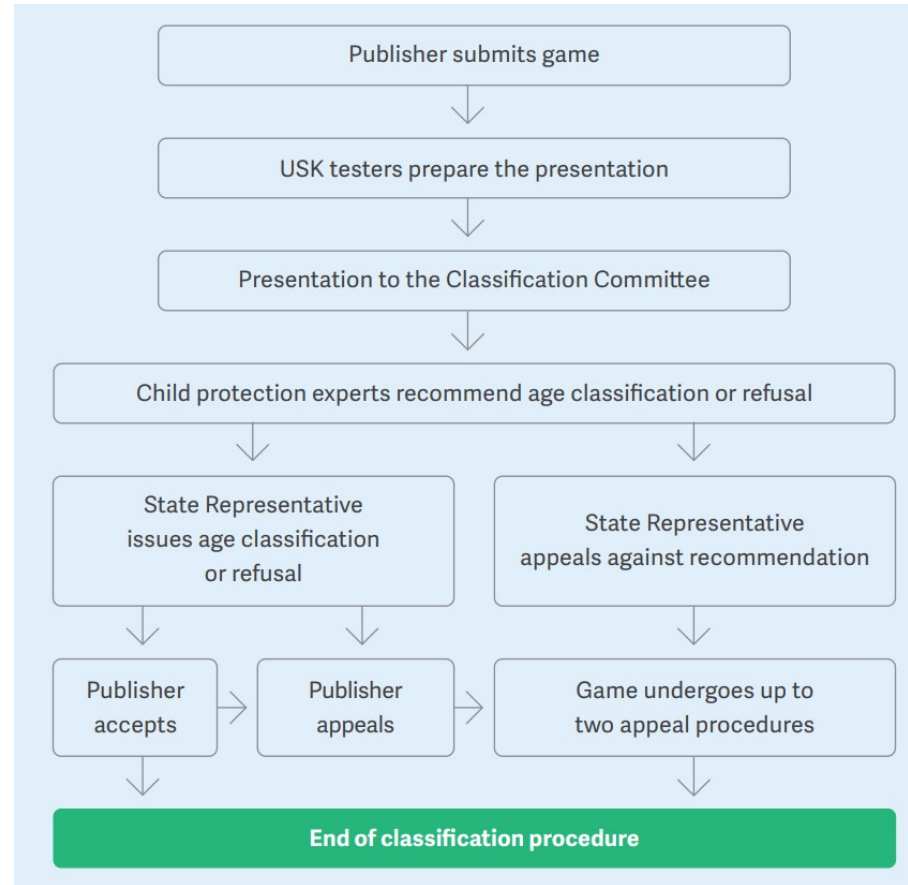


Image sources: www.usk.de

USK Age Categories (1/3)



Approved
without age restriction
according to § 14 JuSchG



Approved
for children aged 6 and above
according to § 14 JuSchG



Finding Hannah
Fein Games



www.usk.de



Peppa Pig:
Eine Welt voller Abenteuer
Outright Games Ltd



www.usk.de



The Bus
Aerosoft



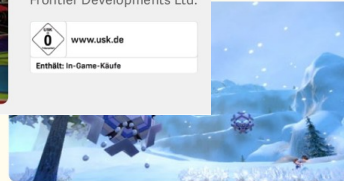
www.usk.de



F1 Management 2023
Frontier Developments Ltd.



Enthält: In-Game-Käufe



Pokémon Karmesin/Purpur
Nintendo



Pikmin 4
Nintendo



LEGO 2K Drive
Take 2 Interactive



The Smurfs 2:
The Prisoner of the Green Stone
MICROIDS S.A.



Image sources: www.usk.de

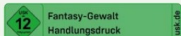
USK Age Categories (2/3)



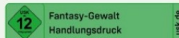
Approved
for children aged 12 and above
according to § 14 JuSchG



The Legend of Zelda:
Tears of the Kingdom
Nintendo



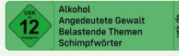
Wild Hearts
Electronic Arts



TopSpin 2k25
Take 2 Interactive



Hauma
SenAm Games



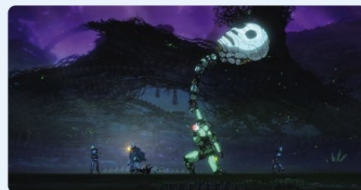
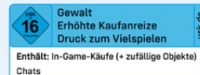
Approved
for children aged 16 and above
according to § 14 JuSchG



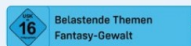
Remnant 2
Gearbox Publishing LLC



WWE 2k24
Take 2 Interactive



Ghost Song
Humble Games



Master Detective Archives:
RAIN CODE
Spike Chunsoft



Image sources: www.usk.de

USK Age Categories (3/3)



Not approved
for young persons aged under 18
according to § 14 JuSchG

- Detailed information about all age categories can be found in the USK brochure:

<https://usk.de/en/the-usk/downloads/>

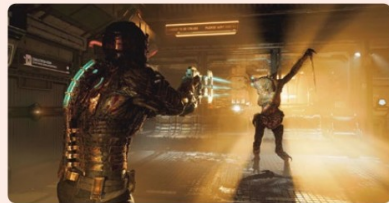
	Resident Evil 4 Capcom 18 Drastische Gewalt Horror Enthält: In-Game-Käufe
	Crime Boss: Rockay City 505 Games 18 Gewalt Drogen Enthält: In-Game-Käufe, Chats
	Dead Space Electronic Arts 18 Drastische Gewalt Horror
	Gord Activision Blizzard 18 Gewalt Horror

Image sources: www.usk.de

USK Content Descriptors



- Since 01.01.2023, the USK ratings also feature content descriptors (similar to IARC).



<https://usk.de/die-usk-alterskennzeichen/>

Angedeutete Gewalt	>	Comic-Gewalt	>
Fantasy-Gewalt	>	Gewalt	>
Drastische Gewalt	>	Sexualisierte Gewalt	>
Kriegsthematik	>	Schreckmomente	>
Horror	>	Belastende Themen	>
Sexuelle Andeutungen	>	Sexuelle Inhalte	>
Schimpfwörter	>	Derbe Sprache	>
Tabakkonsum	>	Drogen	>
Alkohol	>	Glücksspielthematik	>
Handlungsdruck	>		

Pan European Game Information (PEGI)



- Developed by the Interactive Software Federation of Europe (ISFE)
- Came into use in April 2003
- Replaced many national age rating systems with a single European system
- Used in more than thirty countries
- Five age categories
- Eight content descriptors
 - Advise the suitability and content of a game for a certain age range based on the games content
- The age rating does not indicate the difficulty of the game or the skill required to play it



Image sources: https://en.wikipedia.org/wiki/Pan_European_Game_Information

PEGI - Content Descriptors



Image sources: <https://www.isfe.eu/responsible-gameplay/pegi-the-european-content-rating-system/>

Entertainment Software Rating Board (ESRB)



- Assigns age and content ratings, enforces industry-adopted advertising guidelines, and ensures responsible online privacy principles for computer and video games in **Canada** and the **United States**.
- Assigns ratings to games based on their content
- Content descriptors explain specific types of content
- The ratings are intended to aid consumers in determining a game's content and suitability.
- A game's rating is generally displayed on its box, in its media, in advertisements, and on the game's website.
- A publisher submits...
 - ... a completed ESRB online *questionnaire* detailing the game's pertinent content
 - ... a *video* containing footage of the most graphic and extreme content
- The ESRB has been noted for frequently overrating video games
- The ESRB has often been accused of not rating games harshly enough for violence and other related themes



Image sources: https://en.wikipedia.org/wiki/Entertainment_Software_Rating_Board

ESRB - Ratings



- Unrestricted ratings



Everyone
E
6 and over



Everyone 10+
E10+
10 and over



Teen
T
13 and over

- Restricted ratings (games may only be sold to adults)



Mature 17+
M
17 and over



Adults Only 18+
Ao
18 and over

- Other Ratings



Rating Pending
RP / RP 17+

Image sources: https://en.wikipedia.org/wiki/Entertainment_Software_Rating_Board

ESRB - Content Descriptors



- 30 designations of potentially objectionable content
- 4 designations for interactive elements
 - Since February 2018 includes In-Game Purchases



Image sources: <https://chantehill.wordpress.com/2014/03/18/esrb-rating-system/>, <http://www.metallman.com/2012/08/esrb-game-ratings-explained.html>, <https://www.flickr.com/photos/danielleorama/4989537018/lightbox/>

Other age rating systems



- ACB, the Australian Classification Board
- CERO, the Japanese computer and video game rating system
- DJCTQ, the Brazilian media rating system
- OFLC (New Zealand), the New Zealand media rating system
- Republic of China
- Russian Government

- ...and several more around the world.



- "Fokus Game - Freie Fahrt für Hakenkreuze in Games?", making games 11-12 / 2018, Page 6, Computec Media GmbH, Fürth, 2018.
- http://www.gesetze-im-internet.de/englisch_gg/index.html
- <http://www.usk.de/en/>
- <https://usk.de/die-usk-alterskennzeichen/>
- <http://www.usk.de/en/iarc/>
- <https://www.globalratings.com/>
- <https://usk.de/alterskennzeichen-im-online-bereich-ki-system-der-usk-unterstuetzt-beim-internationalen-qualitaetsmanagement/>
- http://en.wikipedia.org/wiki/Unterhaltungssoftware_Selbstkontrolle
- <https://www.bzkg.de/>
- https://de.wikipedia.org/wiki/Bundeszentrale_f%C3%BCr_Kinder-_und_Jugendmedienschutz
- <https://www.mobygames.com/game-group/germany-criminal-code-confiscations-131-excess-violence>
- <https://usk.de/usk-erweitert-ihre-leitkriterien/>
- <https://usk.de/jugendschutzgesetz-aktualisiert-usk-bereitet-sich-auf-aenderungen-vor/>
- <https://usk.de/stellungnahme-der-usk-zur-novellierung-des-jugendmedienschutz-staatsvertrags-jmstv/>
- http://en.wikipedia.org/wiki/Federal_Department_for_Media_Harmful_to_Young_Persons
- <https://pegi.info/>
- http://en.wikipedia.org/wiki/Pan_European_Game_Information
- <http://www.esrb.org/index-js.jsp>
- <https://www.esrb.org/ratings-guide/>
- http://en.wikipedia.org/wiki/Entertainment_Software_Rating_Board
- <https://www.game.de/>